



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/16/2026 - 09:00 AM

09/11/2026

9:16 AM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

24-PRO-00067	Conservatorship of BETTY JO SMITH, MD	RE: Eviction Process; Update on 08/20 Property Visit; Possibility of Loan; & Further Discussion of Conservatee's Location
Line 3	Proposed Conservatee: SMITH, BETTY JO, MD (LINGYS, JULIA E.) Petitioner: SMITH, EMANUEL EZENWA QUINCY (Pro Se) Petitioner: Stiles, Kelsey (GORINI, ROBERT A.) Conservatee: SMITH, BETTY JO, MD (LINGYS, JULIA E.) Proposed Conservator: QUINCY, EMANUEL EZENWA QUINCY Conservator: SAN MATEO COUNTY PUBLIC GUARDIAN (HEUMANN, TARA E SAN MATEO COUNTY ATTORNEY'S OFFICE) Temporary Conservator: SAN MATEO COUNTY PUBLIC GUARDIAN (HEUMANN, TARA E SAN MATEO COUNTY ATTORNEY'S OFFICE) Respondent: Smith, Della (MADISON, JONATHAN E.) Child: SMITH, DAVID	Status Hearing

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

Parties to appear to discuss the status contained in the Public Guardian's Status Report filed 9/9/2026 and how the Public Guardian intends to proceed.

25-PRO-01347	IN RE THE: JON JAKOWATZ LIVING TRUST, DATED MAY 19, 2003	VERIFIED PETITION FOR INSTRUCTIONS- Continued from 04/24/26
Line 4 [5 & 6]	Petitioner: Jaesler, Erik (WIGGS, GEOFFREY E. MACHRUS, NADYA M) Decedent: JAKOWATZ, JON Decedent: JAKOWATZ, LINDA	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL [Related matters at lines 4-6]

The Petition is CONTINUED to January 29, 2027 at 9:00 am for Petitioner to file and serve amended declarations signed under penalty of perjury *under the laws of the State of California* for each of the three pending matters. CCP 2015.5



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Additionally, the Court requires further evidence as to why the settlors' intent that each trust always have a corporate trustee/co-trustee should not be honored. There is a general statement that the principal of each trust is not significant, and that continuing to employ a corporate trustee is not in the best interest of the beneficiaries of the estate, as trustee fees will materially reduce the distributions to the beneficiaries as well as increase the time to complete administration. Without knowing the value of the trust estate, and the cost of a corporate fiduciary, the court is in no position to override the very clear directions in each trust. Each of the three trusts contains language identical to that found in the Linda Jakowatz Living Trust at Article 12, Section 4 & 5:

Section 4: Unless [Trust maker's]spouse is serving as trustee, there shall always be a corporate fiduciary serving as Trustee for any trust created under this agreement.

Section 5: Any corporate fiduciary named in this trust agreement or appointed by a court of competent jurisdiction as a Trustee must be a bank or trust company situated in the United States having trust powers under applicable federal or state law. Such fiduciary shall have a combined capital and surplus of at least 800 million dollars.

The Court understands why the beneficiaries seek the relief, but it does not have enough legal support to grant it, in light of the very clear intent of the settlors. Petitioners may file a supplement in each matter, with any declarations in support thereof properly executed.

25-PRO-01348	IN RE THE: LINDA JAKOWATZ LIVING TRUST, DATED MAY 19, 2003	VERIFIED PETITION FOR INSTRUCTIONS- Continued from 04/24/26
Line 5 [4 & 6]	Petitioner: Caccamo, Kim (WIGGS, GEOFFREY E. MACHRUS, NADYA M) Petitioner: Nelson, Lisa Anne (WIGGS, GEOFFREY E. MACHRUS, NADYA M) Decedent: JAKOWATZ, JON Decedent: JAKOWATZ, LINDA	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL [Related matters at lines 4-6]

The Petition is CONTINUED to January 29, 2027 at 9:00 am for Petitioner to file and serve amended declarations signed under penalty of perjury *under the laws of the State of California* for each of the three pending matters. CCP 2015.5

Additionally, the Court requires further evidence as to why the settlors' intent that each trust always have a corporate trustee/co-trustee should not be honored. There is a general statement that the principal of each trust is not significant, and that continuing to employ a corporate trustee is not in the best interest of the beneficiaries of the estate, as trustee fees will materially reduce the distributions to the beneficiaries as well as increase the time to complete administration. Without knowing the value of the trust estate, and the cost of a corporate fiduciary, the court is in